



THE TECHNICAL UNIVERSITY OF KENYA
FACULTY OF ENGINEERING AND THE BUILT ENVIRONMENT
DEPARTMENT OF CONSTRUCTION AND PROPERTY STUDIES
SEMESTER TWO EXAMINATIONS 2024/2025
THIRD YEAR DEGREE EXAMINATIONS FOR THE BACHELOR OF
QUANTITY SURVEYING
EACQ 3214: CONSTRUCTION LAW B
DATE: JULY, 2025

INSTRUCTIONS:

1. Answer **QUESTION ONE (COMPULSORY)** and any **TWO Questions**.
2. Question **ONE** carries **30 marks** and **ALL** other Questions carry **20 Marks** each.

QUESTION ONE (COMPULSORY)

[30 marks]

(a) With support of case law, State and Explain **THREE (3)** ways through which a director may hold office. **[5 Marks]**

(b) With support of case law, State and Explain **TWO (2)** methods courts have introduced to curb the evasion of the *ultra vires doctrine*. **[5 Marks]**

(c) State and Explain **FIVE (5)** documents that company promoters deliver alongside the Memorandum of Association to the Registrar of companies. **[5 Marks]**

(d) State **FIVE (5)** prerequisites needed in the formation and registration of a limited company. **[5 Marks]**

(e) State and Explain **FIVE (5)** distinctions between a Public and Private Company. **[5 Marks]**.

(f) State **FIVE (5)** rules governing the rights to Partners in their dealings with each other as per **Section 28 of the Companies Act 2015**. **[5 Marks]**

QUESTION TWO

(a) Discuss **FIVE (5)** characteristics which distinguish Limited Liability Companies from other Unincorporated Associations. **[10 Marks]**

(b) Discuss **Four (4)** circumstances through which a partnership may be dissolved. **[10 Marks]**

QUESTION THREE

[20 Marks]

Discuss the **Advantages** and **Disadvantages** of Incorporation of Companies as per the **Companies Act 2015**.

QUESTION FOUR

[20 Marks]

With support of case law, describe **TWO (2)** ways through which the lifting of the corporate veil can be carried out as an exceptions to the rule in **Salomon v. Salomon & Co Ltd [1897] AC 22**.

QUESTION FIVE

[20 Marks]

Discuss the legal restrictions on a company's power to alter its articles.